Conductia — Pre-Send Compliance Rules

The complete list of checks the email screening runs today, taken directly from the repository (`src/lib/compliance/screen.ts` and `src/lib/compliance/llm.ts`). Requested by Storm at the Aug 3 demo.

How a message is judged

Every email sent inside Conductia is screened twice before it can leave:

- **Layer 1 — deterministic rules** (this document's lists). They run live while the banker types (advisory flag) and run AGAIN at send as the hard gate. This layer is the control: no AI in the verdict.
- **Layer 2 — AI double-check (Claude)** at send only. It catches what fixed rules cannot: paraphrased MNPI (Material Non-Public Information), implied or softened promises. It can only RAISE a verdict (compliant to hold, hold to blocked), never lower one. If the AI is unavailable, the deterministic verdict stands and the message is visibly marked "not AI-checked".

Three possible verdicts:

- **Compliant** — passes all checks; the email sends.
- **Hold (MNPI)** — MNPI signal; the email does NOT send and waits in the CCO (Chief Compliance Officer) review queue for release or reject. (The approach Storm endorsed on Aug 3.) **The queue has no bypass: a sender sign-off never clears an MNPI signal.**
- **Hold (reputational only)** — the AI's front-page test found ONLY a reputational concern (no MNPI, no promissory issue). This does NOT queue: the concern comes straight back to the sender in a dialog with an AI-suggested rewrite (changes highlighted) and an ephemeral risk read. The sender decides: use the suggestion, send as written (the override is audited), or edit. Per Storm, Aug 11: "the system saves them from themselves, not from sending."
- **Blocked** — promissory language WITHOUT the sender's sign-off; the email does not send and comes back with a suggested rewrite.

Sender sign-off (Aug 13 refinement, "option A"). While typing, each flagged term is underlined with a one-click "Keep" sign-off. A promissory term the sender explicitly kept no longer blocks: if every flagged issue in the message carries a sign-off and no MNPI signal is present, the message sends — with the sign-off recorded in the compliance audit, so supervision sees exactly which flagged terms were kept knowingly. The AI still reviews the whole message and can hold or block on anything the sender has NOT signed off. Adopted from Storm's most recent guidance ("sender always retains override authority"); **if compliance wants this stricter, say so and the routing flips — the escape clause is part of the decision record (issue #164, decision 2).**

The ephemeral risk read. The dialog shows a 0-100 risk read at send time. It is deliberately never stored anywhere (Storm, Aug 11: legal liability) — the audit records the sender's decision, not the

number.

Priority when both match: blocked wins over hold. The subject line, the body, the rich-text (HTML) body, and every attachment FILENAME are all screened — each field separately, plus a cross-field MNPI check (a figure in the subject and its context in the body still hold together).

Layer 1A — Promissory language (verdict: BLOCKED)

Forward-looking commitment language to a counterparty. Each pattern comes with the rewrite suggestion shown to the banker:

1. "I guarantee / we guarantee / guaranteed / guaranteeing" — rewrite: replace with a non-binding alternative: "we believe / we expect to / our intent is".
2. "guaranteed board seat / role / position / outcome / return" — rewrite: avoid offering a guaranteed role or outcome to a counterparty pre-close; frame as a discussion point, not a commitment.
3. "I promise / we promise" — rewrite: replace with "intend to" or "expect to".
4. "can we promise / could we promise" — rewrite: asking whether to promise is itself promissory framing; rephrase as a discussion of terms.
5. "I commit to / we commit to" — rewrite: replace with "are working toward" or "intend to" pre-signing.
6. "you have my word / you have our word" — rewrite: personal-word commitments are promissory; remove and route through advisors.

Layer 1B — MNPI signals (verdict: HOLD)

Two independent triggers; either one holds the message.

Trigger 1 — any of these keywords or phrases:

- internal valuation
- internal model
- valuation model
- deal floor
- price floor
- reservation price
- walk-away
- mnpi
- material non-public
- board minutes
- draft 10- (draft SEC filings, e.g. 10-K / 10-Q)
- unannounced

Trigger 2 — a dollar figure TOGETHER WITH valuation context in the same message:

- a figure like $510M, 510M, $1.2B, 1.2 billion, 300 million
- plus any of: floor, ceiling, valuation, model, EBITDA, margin, range, target price, cap table, term sheet

A figure alone ("dinner was $80") does not trigger; a figure next to valuation context does.

Layer 2 — What the AI is asked to catch

The Claude layer is instructed, verbatim in scope: implied or softened promissory commitments to a counterparty, and subtle MNPI leakage such as internal valuations, price floors, or unannounced facts — judged only on the message text, never flagging ordinary deal logistics. Escalate-only; a rules verdict is never downgraded.

Recording

Every screen and every send is written to the audit log with the verdict, the reasons, whether the AI layer ran, and a hash of the screened text. Held and blocked messages are stored in full (SEC 17a-4 / FINRA 4511 retention posture) so a supervisor can actually read what they are reviewing.

Known gap, per Storm's Aug 3 request

Storm expanded the screening scope beyond regulatory compliance to REPUTATIONAL risk — the "Wall Street Journal test": would you be embarrassed if this email ran on the front page? No rule above covers that today. Proposed next step: add a reputational-risk instruction to the AI layer (it is judgment-shaped, a poor fit for fixed patterns) and iterate the wording with Lance, Jess and Storm on this document.